

Terms of Service

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1. Introduction

These Terms of Service ("Terms", "Terms of Service") establish the rules governing the use of the Service and define the legal relationship between the entity utilizing the Service and Fluide ("Company"). Fluide operates web pages located at fluide.ai ("Website") and offers a Service (as defined below in Section 2). The Service is designed for individuals to assist them in their learning activities. By using the Website and/or the Service in any manner, including going through the Account registration process, the User or the Guest declares that (i) they have read, understood, and accepted the provisions of the Terms and Privacy Policy, (ii) they have the legal age and capacity to enter into an agreement with the Company, (iii) their declarations are binding. If the User does not agree to be bound by the provisions of the Terms, they should not use the Service. In such a case, however, the User may contact the Company by emailing support@fluide.ai so that the Company can try to find a solution.

2. Definitions

Unless otherwise indicated, the following capitalized terms have the following meanings:

Account – refers to an individualized panel that allows the User to access and utilize the Service and/or the Website.

Agreement – refers to a subscription agreement that may be entered into between the User and the Company, specifying the scope and price for using the Service.

Company – refers to Fluide.

Content – refers to the materials such as text, images, and others that the Guest or the User publishes, presents, or sends on the Website or using the Service.

Device – refers to devices such as computers, telephones, smartphones, tablets, or other electronic equipment that enable browsing web pages.

Guest – refers to an individual browsing the Website.

Intellectual Property – refers to any designations, inventions, utility models, industrial designs, works, and other expressions of creative activity that are subject to the exclusive rights of the Company.

License – refers to a non-exclusive right to personally use the Service and/or the Website.

Link – refers to a hyperlink that directs to Other Websites.

Mobile Device – refers to a portable device such as a telephone, smartphone, tablet, or other electronic equipment that operates the Website and/or the

Service.

Notification – refers to a message sent to the User as part of the Service.

Other Websites – refers to websites other than the Website.

Password – refers to the User's anonymized verification tool that enables access to the Account and consists of a sequence of characters entered via the keyboard of a computer or Mobile Device, including at least 8 characters.

Privacy Policy – refers to the Privacy Policy that defines the rules for processing personal data by the Company, available at the following internet address:

<https://www.fluide.ai/privacy>.

Service – refers to the Website.

Terms – refers to these terms of service available at the following address:

<https://www.fluide.ai/terms>.

User – refers to an individual that owns the Account.

Website – refers to web pages located at [fluide.ai](https://www.fluide.ai).

The above definitions retain their meaning regardless of whether they are expressed in the singular or the plural.

3. General Rules

The use of the Service implies full acceptance of the Terms. The Terms apply to the relationship between the Company and the Guest or the User only. If the Service and/or the Website provide the possibility of services by other entities, those services will be provided based on regulations shared by those entities, and only those entities will be responsible for the execution of the services, unless the Terms clearly and unambiguously indicate otherwise. Each individual using the Service and/or the Website is obligated to use it in accordance with its intended purpose as defined by the Terms. The use of the Website is permissible provided that the Device meets the following minimum technical requirements:

- Has access to the Internet.
- Allows the use of one of the following internet browsers: (i) Google Chrome, (ii) Opera, (iii) Firefox, (iv) Safari, (v) Microsoft Edge.
- The internet browser version used cannot be older than one year.
- Has JavaScript enabled.

It is recommended to install antivirus software on the Device or Mobile Device.

4. Account

Account setup is possible through the Website. Account setup requires logging in using a Google account or registering by providing a personal email and Password. When creating an Account, you should provide accurate, complete, and current information at all times. Inaccurate, incomplete, or outdated information may result in the immediate termination of your account on the Website and Service. You are responsible for maintaining the confidentiality of your Account and Password, including but not limited to restricting access to

your Device, Mobile Device, and/or Account. You agree to accept responsibility for any and all activities or actions that occur under your Account and/or Password, whether your Password is used on our Website and Service or a third-party service. You must immediately notify us upon becoming aware of any security breach or unauthorized use of your Account. You may not use another person's or entity's name as your username or use a name or trademark that is not lawfully available for use without appropriate authorization. You may not use an offensive, vulgar, or obscene name as your username.

5. Communications

By creating an Account, you agree to subscribe to newsletters, marketing or promotional materials, and other information that we may send.

6. Contests, Sweepstakes, and Promotions

Any contests, sweepstakes, or other promotions (collectively "Promotions") made available through the Service or Website may be governed by rules that are separate from these Terms (particularly those set out in the Agreement, if concluded). If you participate in any Promotions, please review the applicable rules, as well as our Privacy Policy. If the rules for a Promotion conflict with these Terms, the Promotion rules will apply.

7. Subscriptions

Some parts of the Service are billed on a subscription basis ("Subscriptions"). You will be billed in advance on a recurring and periodic basis ("Billing Cycle"). Billing cycles are set either on a monthly or annual basis, depending on the type of subscription plan you select when purchasing a Subscription. At the end of each Billing Cycle, your Subscription will automatically renew under the exact same conditions unless you cancel it or the Company cancels it. You may cancel the renewal of your Subscription either through your Account or by contacting the Company's customer support team at **support@fluide.ai**. A valid payment method, including credit or debit card, Apple Pay, or Google Pay, is required to process the payment for your subscription. You shall provide the Company with accurate and complete billing information, including (i) full name, (ii) email address, (iii) country, and (iv) valid payment method information. By submitting such payment information, you automatically authorize the Company to charge all Subscription fees incurred through your Account to any such payment instruments. Should automatic billing fail for any reason, the Company will issue an electronic invoice indicating that you must proceed manually, within a specified deadline date, with the full payment corresponding to the billing period as indicated on the invoice. We reserve the right to refuse or cancel your order at any time for reasons including, but not limited to, service availability,

errors in the description or price of the service, errors in your order, or other reasons. We reserve the right to refuse or cancel your order if fraud or an unauthorized or illegal transaction is suspected. The Company is not responsible for any additional fees, including taxes, imposed by the relevant authorities of the country in which the person submitting an order resides or is located. Payment of these additional fees remains the responsibility of the person submitting the order.

8. Fee Changes

The Company, in its sole discretion and at any time, may modify Subscription fees for the Subscriptions. Any Subscription fee change will become effective at the end of the current Billing Cycle. The Company will provide you with reasonable prior notice of any change in Subscription fees to give you an opportunity to terminate your Subscription before such change becomes effective. Your continued use of the Service after the Subscription fee change comes into effect constitutes your agreement to pay the modified Subscription fee amount.

9. Refunds

Except when required by law, paid Subscription fees are non-refundable.

10. Content

Our Service and Website allow you to post, link, store, share, and otherwise make available certain information, text, graphics, videos, or other material ("Content"). You are responsible for the Content that you post on or through the Service, including its legality, reliability, and appropriateness. By posting Content on or through the Service or Website, you represent and warrant that: (i) the Content is yours (you own it) and/or you have the right to use it and grant us the rights and license as provided in these Terms, and (ii) the posting of your Content on or through the Service does not violate the privacy rights, publicity rights, copyrights, contract rights, or any other rights of any person or entity. We reserve the right to terminate the Account of any User found to be infringing on a copyright. You retain all your rights to any Content you submit, post, or display on or through the Service or Website, and you are responsible for protecting those rights. We take no responsibility and assume no liability for the Content you or any third party posts on or through the Service.

11. Prohibited Uses

You may use the Service or Website only for lawful purposes and in accordance with the Terms. You agree not to use the Service or Website:

- In any way that violates any applicable national or international laws or regulations.
- For the purpose of exploiting, harming, or attempting to exploit or harm minors in any way, including exposing them to inappropriate content.
- To transmit or procure the sending of any advertising or promotional material, including any "junk mail," "chain letter," "spam," or any other similar solicitation.
- To impersonate or attempt to impersonate Fluide, a Fluide employee, another User, or any other person or entity.
- In any way that infringes upon the rights of others or is illegal, threatening, fraudulent, harmful, or in connection with any unlawful, illegal, fraudulent, or harmful purpose or activity.
- To engage in any other conduct that restricts or inhibits anyone's use or enjoyment of the Service or Website, or which, as determined by us, may harm the Company or Users of the Service or expose them to liability.

12. Intellectual Property Rights

The Service and its original content (excluding Content provided by Users), features, and functionality are and will remain the exclusive property of the Company and its licensors. The Service is protected by copyright, trademark, and other laws of both the United Kingdom and foreign countries. Our trademarks and trade dress may not be used in connection with any product or service without the prior written consent of the Company. Nothing in the Terms gives you a right to use the Company's name or any of the Company's trademarks, logos, domain names, or other distinctive brand features. You may not sell, transfer, or sublicense any of the Company's rights under the Terms. All rights not expressly granted to you are reserved by the Company.

13. Third-Party Links

Our Service or Website may contain links to third-party websites or services that are not owned or controlled by the Company. The Company has no control over and assumes no responsibility for the content, privacy policies, or practices of any third-party websites or services. We do not warrant the offerings of any of these entities/individuals or their websites. You acknowledge and agree that the Company shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the use of or reliance on any such content, goods, or services available on or through any such third-party websites or services. We strongly advise you to read the terms and conditions and privacy policies of any third-party websites or services that you visit.

14. Termination

We may terminate or suspend your Account and bar access to the Service immediately, without prior notice or liability, under our sole discretion, for any reason whatsoever and without limitation, including but not limited to a breach of the Terms. If you wish to terminate your Account, you may simply request the termination by emailing **support@fluide.ai**. All provisions of the Terms which by their nature should survive termination shall survive termination, including, without limitation, ownership provisions, warranty disclaimers, indemnity, and limitations of liability.

15. Limitation of Liability

To the fullest extent permitted by applicable law, in no event shall the Company, its affiliates, directors, employees, agents, suppliers, or licensors be liable for any indirect, incidental, special, consequential, or punitive damages, including, without limitation, loss of profits, data, use, goodwill, or other intangible losses, resulting from (i) your access to or use of or inability to access or use the Service or Website; (ii) any conduct or content of any third party on the Service or Website; (iii) any content obtained from the Service or Website; and (iv) unauthorized access, use, or alteration of your transmissions or content, whether based on warranty, contract, tort (including negligence), or any other legal theory, whether or not we have been informed of the possibility of such damage, and even if a remedy set forth herein is found to have failed of its essential purpose.

16. Governing Law

These Terms shall be governed and construed in accordance with the laws of the United Kingdom, without regard to its conflict of law provisions. Our failure to enforce any right or provision of these Terms will not be considered a waiver of those rights. If any provision of these Terms is held to be invalid or unenforceable by a court, the remaining provisions of these Terms will remain in effect. These Terms constitute the entire agreement between us regarding our Service and supersede and replace any prior agreements we might have had between us regarding the Service.

17. Changes

We reserve the right, at our sole discretion, to modify or replace these Terms at any time. If a revision is material, we will provide at least 30 days' notice prior to any new terms taking effect. What constitutes a material change will be determined at our sole discretion. By continuing to access or use our Service after any revisions become effective, you agree to be bound by the revised terms. If you do not agree to the new terms, you are no longer authorized to use the Service.